



Appeal Decision

Site visit made on 11 August 2026

by J Bowyer BSc(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6011498

Woodstock House, Mole Street, Ockley, Surrey RH5 5PB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission under section 73 of the Town and Country Planning Act 1990 (as amended) for the development of land without complying with conditions subject to which a previous planning permission was granted.
 - The appeal is made by David Jones against Mole Valley District Council.
 - The application Ref is MO/2026/00517.
 - The application sought planning permission for 'erection of 2 No. dwellings following the demolition of the existing buildings on the site' without complying with conditions attached to planning permission Ref MO/2021/1000/PLA, dated 19 November 2021.
 - The conditions in dispute are Nos 2, 3, 4, 5, 9, 10 and 11 which are listed, along with their reasons, in the attached Schedule 1: Disputed Conditions.
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Decision

1. The appeal is dismissed and planning permission for 'erection of 2 No. dwellings following the demolition of the existing buildings on the site' without complying with conditions attached to planning permission Ref MO/2021/1000/PLA, dated 19 November 2021 is refused.

Preliminary Matters

2. The appellant has confirmed that the application reference stated on the planning application form was an error and that the proposal relates to permission granted under application reference MO/2021/1000/PLA ('the Original Permission'). This is the basis on which the Council considered the proposal and I have determined the appeal accordingly.
3. The Government published a revised version of the National Planning Policy Framework ('the Framework') in August 2026. The main parties have had the opportunity to address the change in written comments and I have determined the appeal having regard to the comments received and the updated Framework.

Background and Procedural Matters

4. The Council did not determine the application within the prescribed period. As part of the appeal, it has provided an officer report and statement which indicate that it would have refused the application. Following the lodging of the appeal however, the Council had no jurisdiction to determine the application and while the appellant suggests that the Council had published the application as 'refused', this does not constitute a formal decision.

5. Under s73 of the Town and Country Planning Act 1990 (as amended) ('the Act'), planning permission may be granted for the development of land without complying with conditions subject to which a previous planning permission was granted. Where such an application is made retrospectively, s73A of the Act provides that permission may be granted including development already carried out without complying with some condition subject to which planning permission was granted.
6. In this case, Condition 2 of the Original Permission specified the approved plans. A number of other conditions included requirements for specified details to be submitted and approved either prior to the commencement of development, before above ground works commenced or prior to occupation. No application to discharge these conditions was made, although I saw that dwellings on the site were now occupied.
7. The appellant is now seeking to 'vary' Condition 2 of the Original Permission in order to substitute plans showing development which differs from the approved plans including in respect of the position of one of the dwellings and the form and appearance of both dwellings. For the most part, the changes reflect the development as-built on the site, although the Council notes that there are some differences including in the detail of fenestration. For the avoidance of doubt, I have considered the appeal on the basis of what is shown on the submitted plans save in respect of materials which are the subject of Condition 3.
8. As well as seeking revision to the approved plans, the appellant has provided details in respect of the matters subject of Conditions 3, 4, 5, 9, 10 and 11 for which they seek approval. Ultimately however, there is no power under s73/s73A of the Act to approve details reserved by conditions, and s73(2) of the Act requires only consideration of the question of what conditions a grant of planning permission should be subject to. Should the appellant wish to have the merits of the submitted schemes considered, it would have been necessary for an appeal to be submitted under s78(1)(b) of the Act. There is no such appeal before me.
9. In determining the appeal that is before me, I have therefore considered whether these disputed conditions satisfy requirements for conditions set out at Policy DM6 of the Framework and continue to serve a useful planning purpose.
10. The appellant's evidence additionally includes reference to Condition 12 of the Original Permission which essentially requires that space for vehicles to park and turn is provided in accordance with the approved plans and thereafter retained and maintained. However, the planning application form did not identify a request to vary or remove this condition. Moreover, the accompanying submissions refer to an access route to the development, and include a marked-up version of a location plan showing an access route in black which the appellant's evidence suggests is partly new. No clear details of parking or turning within the site are provided. In practice, it therefore seems to me that the submission would more properly be considered as part of the proposal to 'vary' Condition 2. This is how the Council has considered the proposal and I have determined the appeal on the same basis.
11. S73(4) of the Act provides that s73 does not apply if the previous planning permission was granted subject to a condition as to the time within which the development was to be begun and that time has expired without the development having been begun. In this case, the Council considers that the as-built development differs materially from that approved under the Original Permission

such that the development does not constitute lawful implementation of the Original Permission. In that situation, the Original Permission would have lapsed and there would be no valid extant permission to vary through the appeal scheme.

12. However, it is not within my remit in an appeal made under s78 of the Act to formally determine whether the Original Permission development has been lawfully implemented. My consideration of this appeal does not affect the issuing of a determination of lawfulness under s191 of the Act, and whether or not to pursue enforcement action against the existing development on the site would be a matter for the Council. Given too my findings on the main issues, I have not found it necessary to consider this matter further in my decision.

Main Issues

13. The main issues are:

- i) the effect of the proposed variation of Condition 2 on the character and appearance of the area; and
- ii) whether or not Conditions 3, 4, 5, 9, 10 and 11 satisfy the tests for conditions set out at Policy DM6 of the Framework and continue to serve a useful planning purpose.

Reasons

Condition 2

14. The appeal site is located within an area designated as 'Countryside Beyond the Green Belt' by the Mole Valley Local Plan 2024 ('the LP') where Policy EN2 of the LP provides that the rural character and largely undeveloped nature of the countryside will be protected for its own sake. It is also part of an Area of Great Landscape Value ('AGLV'). The Council further advises that there is a proposal to extend the boundary of the Surrey Hills National Landscape which would encompass the appeal site. However, no decision to confirm the extension has yet been made. At the current time, the site is not within the National Landscape and I have considered the appeal on that basis.
15. For the most part, the area around the appeal site comprises open fields and woodland parcels, amongst which are occasional isolated properties or clusters of buildings which are generally in residential or agricultural uses. Buildings are of typically traditional rural vernacular style and materials with pitched or hipped tiled roofs and brick, tile hanging or render finishes common. As a result, there is a distinctly rural quality to this part of the countryside which I find contributes positively to the landscape character and scenic beauty of the AGLV.
16. The appeal proposal would continue to provide two dwellings on the site as was approved under the Original Permission. The alterations now proposed include a change to the position of Unit 1. Given however that it remains within the red line boundary established by the Original Permission and in relatively close proximity to former buildings on the site, I agree with the Council that this change would not in itself adversely affect the undeveloped character of the countryside over and above the Original Permission development. Changes to the design of the front gables would also be minor and I agree with the Council that this element would be acceptable.

17. However, the Original Permission indicated that the development would have shared access from the highway with Woodstock House via a relatively short connection from the main part of the site to the existing driveway to this property. In contrast, the access route now indicated would extend from the east side of the main part of the site before running north along the boundary with Volvens Farm to join the driveway significantly closer to the highway. Much of this route would fall outside of the red line boundary established by the Original Permission.
18. Moreover, while the appellant's evidence suggests that the route existed and was used before the present development, use is referred to as occasional and to allow tractor and bailer access or for cesspit cleaning. The appellant comments that the route was part shingle and became heavily overgrown, and aerial photographs within the evidence of both the Council and the appellant certainly suggest that any route did not stand out against the surrounding undeveloped field. Even if it follows a route that has historically been used for occasional access, the development now proposed results in a significant length of new surfacing between the site and the driveway to Woodstock House which the appellant accepts is now much more clearly visible. This would be significantly more urbanising than the short connection to the existing driveway approved through the Original Permission and would in my assessment harm the rural character and largely undeveloped nature of the countryside here.
19. In addition, the Original Permission development included two dormers to the south roofslope of Unit 1 and the west roofslope of Unit 2. However, as small, pitched roof features of limited width which were positioned significantly below the ridge and back from the elevation below, these would form very modest features in the host roofslopes. Under the appeal proposal, the dormers would be replaced by large, flat-roof features of significant height, width and depth with no meaningful set down or set back from the elevation below. They each have considerable bulk and mass, the appearance of which is further increased by the very wide cheeks around the windows. As a result, the dormers are highly dominant features against the host roof. They cause the dwellings to appear top-heavy and unbalanced and the addition of significant bulk and mass to the upper level significantly exacerbates the visual presence of the dwellings and their effect on the openness and undeveloped quality of the countryside here. Moreover, the scale, flat-roof design and bulky cheeks of the dormers gives them a notably suburban quality which sits awkwardly and unsympathetically against the design of the dwellings and their rural context.
20. I find as a result that the dormers are incongruous and disproportionate additions which are urbanising and which detract notably from the character and appearance of the dwellings and the rural quality of the area with consequent detriment to the character and scenic beauty of the AGLV. The site is set back from Mole Street, but there are some views of the development from the street, and it is more prominent in views from nearby footpaths. The adverse effects of the development would therefore be publicly appreciable.
21. In reaching this view, I have noted the appellant's reference to examples of permissions granted for dormers or prominent roof forms. Very limited detail is provided, but it appears from the appended photographs that these sit within built-up areas. The surrounding context is therefore markedly different to the appeal site which sits within countryside. These examples may be more visible from the street scene, but their circumstances are not therefore directly comparable to the

appeal proposal and they do not in my view offer meaningful support for the development before me.

22. Taking the above matters together, I conclude that the proposed variation of Condition 2 would cause unacceptable harm to the rural character and appearance of the area in conflict with Policy EN2 of the LP. There would also be conflict with Policies EN4 and EN8 of the LP insofar as they include requirements for high quality design which makes a positive contribution to local character, development of an appropriate scale, height, massing, proportion and form and which does not harm the distinctive character or scenic beauty of the AGLV.

Conditions 3, 4, 5, 9, 10 and 11

23. Framework Policy DM6 outlines that planning conditions should only be attached where they are necessary to make the development acceptable in planning terms, relevant to the development and to planning considerations generally, sufficiently precise to make them capable of being complied with and enforced and reasonable in all other respects.
24. The reasons given for Conditions 3, 4, 5, 9, 10 and 11 broadly relate to ensuring that the development is acceptable in terms of its effects on the character and appearance of the area, living conditions, flood risk, and climate change and sustainability. There is no compelling evidence before me that these matters would no longer be relevant to the development and to planning considerations generally. Nor that any of the conditions would be insufficiently precise.
25. The remaining requirements of Policy DM6 of the Framework are that conditions are necessary to make the development acceptable in planning terms and reasonable in all other respects.

Condition 3

26. Condition 3 relates to details of external materials. Given the significant effect that materials can have on the character and appearance of a building and area and from the information before me, I consider that control over external materials as sought by Condition 3 is necessary and reasonable.
27. Moreover, details submitted by the appellant indicate timber cladding to the walls of the dwellings which would be kept in its natural finish and a dark synthetic slate roof. Weatherboarding is often found in rural areas. However, while dark roofs may not in themselves be uncharacteristic and I have noted examples cited by the appellant of approvals given for slate roofs, I saw that the synthetic slate at the appeal site has a somewhat shiny quality and a flatness which results in a clearly artificial appearance. This notably distinguishes it from natural slate and is markedly at odds with the traditional materials that are typical nearby and the clay tiles that were indicated on the plans approved under the Original Permission.
28. In my assessment, the roof material appears conspicuous and out of place in the rural area and AGLV and would be contrary to requirements in Policies EN4 and EN8 of the LP for high quality design which makes a positive contribution to local character and which does not harm the distinctive character or scenic beauty of the AGLV. It is also contrary to the Framework insofar as it includes requirements for proposals to respond to context so that they integrate with and enhance their surroundings; and to create visually attractive, distinctive and characterful

development to establish or maintain a strong sense of place including through a coherent palette of materials.

29. I am not therefore satisfied that the indicated roofing material would be acceptable and the details provided as part of the appeal do not lead me to find that Condition 3 of the Original Permission is no longer necessary or reasonable.

Condition 4

30. Condition 4 relates to the details of hard surfacing within the site. Given the potential for significant effects on the character and appearance of an area or implications for flooding and drainage and from the information before me, I consider that control over hard surfacing as sought by Condition 4 is necessary and reasonable.
31. Moreover, details submitted by the appellant refer to the completed development as incorporating grassed areas, shingle surfacing, York stone patio areas and retained hardstanding. The Council does not raise concerns with these materials in principle, and based on my observations, they would be generally appropriate to their context.
32. However, I consider that it would be necessary to require that hard surfacing is retained in accordance with any approved details as is the case under the terms of Condition 4 currently in order to ensure that there would not be changes which might result in adverse effects. No clear plan illustrating the locations and types of hard surfacing on the site has been provided and without this, there is an unacceptable lack of clarity about details of hard surfacing on the site. It would not therefore be possible to properly secure retention of hard surfacing in accordance with approved details.
33. The details provided as part of the appeal do not therefore lead me to find that Condition 4 of the Original Permission is no longer necessary or reasonable.

Condition 5

34. Condition 5 relates to details of surface water drainage at the site. The appellant has not argued that the condition would in principle be unnecessary, and I consider it reasonable to ensure that sufficient details of drainage are provided to enable assessment of whether the provision would be adequate and appropriate having regard to the requirements of LP Policy INF3 for development to avoid, reduce or mitigate flood risk.
35. Details submitted by the appellant suggest that drainage infrastructure has been installed serving both dwellings and that surface water is directed to an existing drainage ditch serving the wider site. However, while a very small scale plan has been provided marking storm drains and a ditch and I note comments highlighting a reduction in hard surfacing, technical details of the installed features are limited and no performance calculations or assessment of the capacity of the ditch to accommodate flows have been provided. Notwithstanding the appellant's assertion that the drainage system has been functioning following construction and successfully accommodated significant rainfall events without flooding, it is not therefore possible to determine that the drainage would function effectively in all design storm events. Nor is there any information on measures to prevent pollution to receiving ground and/or surface water as is required by Condition 5 currently.

36. The details provided as part of the appeal do not therefore lead me to find that Condition 5 of the Original Permission is no longer necessary or reasonable to ensure that there would not be unacceptable flood risk or drainage effects arising from the development.

Condition 9

37. Condition 9 relates to details of measures to reduce carbon emissions of predicted energy use by at least 10% through on-site decentralised and renewable or low carbon energy sources. The appellant has not argued that the condition or its requirements would in principle be unnecessary or unreasonable, and I consider from the information before me that it would continue to serve a useful planning purpose in ensuring suitable measures to mitigate climate change as now sought by Policy EN13 of the LP.
38. The details submitted by the appellant refer to insulation of 150mm thickness and installation of air source heat pumps to each dwelling which have Ofgem approval. I have noted the specifications of the heat pumps and have no firm reason to doubt that these measures would contribute to sustainability objectives. However, while the appellant's final comments included a Building Regulations England Part L Compliance Report, the declarations have not been completed and it covers only one of the dwellings. The details submitted do not therefore fulfil the requirements of the condition to demonstrate a reduction in carbon emissions of predicted energy use by at least 10% which I have no firm reason to find would no longer be reasonable or necessary.
39. The details provided as part of the appeal do not therefore lead me to find that Condition 9 of the Original Permission is no longer necessary or reasonable.

Condition 10

40. Condition 10 relates to details of boundary treatment. Given the potential effects of boundary treatment on the character and appearance of the area and implications for living conditions and from the information before me, I consider that control over boundary treatment as sought by Condition 10 is necessary and reasonable.
41. Moreover, the details submitted by the appellant include a plan which is said to show a beech hedge between Woodstock House and the development, and trees to screen the site from neighbouring property. However, the plan shows 15 trees positioned towards the boundary with the neighbouring Volvens Farm as well as a tree within the main part of the site which may represent an existing large tree that I observed at my visit. This is inconsistent with the written submission which refers to 19 Lombardy Poplar, 5 Silver Birch and 4 Chestnut trees. The level of tree planting is accordingly unclear and no details of species are shown on the plan. The detail of what landscaping is actually proposed to provide boundary treatment is therefore ambiguous. In addition, while the appellant advises that approval for picket fencing is sought, no firm details of the location or design of such fencing have been provided.
42. I therefore consider that there remains an unacceptable lack of clarity about details of boundary treatment on the site and the details before me do not lead me to find that Condition 10 of the Original Permission is no longer necessary or reasonable.

Condition 11

43. Condition 11 relates to provision for electric vehicle charging with fast charge sockets. The appellant has not argued that the condition or its requirements would in principle be unnecessary or unreasonable, and I consider from the information before me that it would continue to serve a useful planning purpose in addressing requirements outlined at Policy INF2 of the LP.
44. The details submitted by the appellant indicate that electric vehicle charging has been installed and I note that the Local Highway Authority has now advised that the details would comply with the requirements of Condition 11. However, I have noted above that there is no power under s73/s73A of the Act to approve details reserved by conditions.
45. Moreover, I consider that it would be necessary to require that charging infrastructure is retained and maintained in accordance with approved details as is currently the case under the terms of Condition 11 in order to ensure that there remains provision in accordance with the development plan. However, the charging has been installed in locations alongside the development as built and I have found under the first main issue that the differences from the Original Permission that would result from the variation of Condition 2 cause unacceptable harm to the rural character and appearance of the area.
46. The installed electric vehicle charging infrastructure may in itself be acceptable, but insofar as the variation of Condition 2 which includes changes to the position of one of the dwellings would not be acceptable, I am not satisfied that it would be appropriate to vary Condition 11 to require that electric vehicle charging as has been installed is retained and maintained.
47. The details before me do not therefore lead me to find that Condition 11 of the Original Permission is no longer necessary or reasonable.

Conclusion on Main Issue

48. I acknowledge the information submitted by the appellant in respect of Conditions 3, 4, 5, 9, 10 and 11 and that they have sought to provide additional clarification where it was requested. For the reasons above however, I find in the circumstances of this appeal that these conditions remain reasonable and necessary.
49. Given too my findings on the first main issue, I do not consider that it would be appropriate to allow the appeal and impose varied versions of conditions 3, 4, 5, 9, 10 or 11 referring either to the submitted details or updated requirements for submission of outstanding technical details. In this case, imposing such conditions would not make the overall development applied for acceptable.
50. Overall, I conclude that conditions 3, 4, 5, 9, 10 and 11 satisfy the tests for conditions set out at Policy DM6 of the Framework and continue to serve a useful planning purpose in accordance with requirements of Policies EN4, EN8, EN13, INF2 and INF3 of the LP.

Other Matters

51. The appellant advises that the proposal results from their having misunderstood parts of the planning process and that there was no attempt to avoid the planning

system. I have no firm reason to doubt this, nor that the appellant sought to work positively with the Council and respond to requests for information. However, these are not factors which alter my assessment of the planning merits of the proposal.

Planning Balance

52. I have found that the proposed variation of Condition 2 would cause unacceptable harm to the character and appearance of the area and would conflict with Policies EN2, EN4 and EN8 of the LP. Disputed Conditions 3, 4, 5, 9, 10 and 11 also satisfy the tests for conditions set out at Policy DM6 of the Framework and continue to serve a useful planning purpose in accordance with requirements of Policies EN4, EN8, EN13, INF2 and INF3 of the LP. From the information before me, the relevant parts of these policies of the LP would be broadly consistent with the Framework and I have no firm reason to reduce the weight that I afford to them. Taking these matters together, I find that the proposal would conflict with the development plan when it is read as a whole.
53. The appeal site is located outside of any settlement where Policy S5 of the Framework indicates that only certain forms of development which are listed at S5(1.) should be approved. It continues that these forms of development should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
54. Even if I were to find that the proposal would be a form of development listed at Policy S5(1.), the adverse effects of the proposal on the character and appearance of the area would be contrary to national decision-making policies in the Framework. In particular, requirements within Policy DP3 for proposals to respond to context so that they integrate with and enhance their surroundings; and to create visually attractive, distinctive and characterful development to establish or maintain a strong sense of place.
55. On the other hand, the appellant advises that the dwellings are not speculative development and are intended to provide homes for family. Be that as it may, the proposal would not deliver additional dwellings beyond what was previously approved under the Original Permission. I also note a comment that the access under the Original Permission was unworkable and would have presented danger to children due to sight lines. However, no firm evidence has been provided to substantiate this assertion or indicate that issues could not be resolved, for example by some form of low-level boundary along the access.
56. The Council does not argue that the access route now proposed would be harmful to highway safety and I have no firm basis to disagree or to doubt the appellant's assertion that the route is practical and safe. I am also satisfied that there would not be unacceptable harm to neighbouring living conditions or harm to the significance of heritage assets. However, these are neutral factors which do not weigh in favour of the proposal.
57. From the information before me, I do not find clear evidence to demonstrate that the proposal would offer meaningful benefits beyond those which would have been delivered through the Original Permission. In that context, I find that the benefits of the proposal would be substantially outweighed by the adverse effects when assessed against the national decision-making policies in the Framework.

58. Material considerations do not therefore indicate that a decision should be made other than in accordance with the development plan.

Conclusion

59. For the reasons given above, I conclude that the appeal should be dismissed.

J Bowyer

INSPECTOR

Schedule 1: Disputed Conditions

Condition 2

The development hereby permitted shall be carried out and completed in all respects strictly in accordance with the submitted documents and plan numbers 210212_R2_001_r.0 Rev R.0, 210212_R1_200_r.0 Rev R.0 and 210212_R1_201_r.0 Rev R.0 contained within the application and no variations shall take place.

Reason: To accord with the terms of the submitted application and to ensure minimal impact on local amenity and the environment in accordance with Mole Valley Core Strategy policy CS14 and Mole Valley Local Plan policy ENV22

Condition 3

Before any above ground works commence, details of the materials to be used in the construction of the external surfaces of the development hereby permitted shall be submitted to and approved in writing by the Local Planning Authority. Development shall be carried out in accordance with the approved details.

Reason: To ensure the development harmonises with its surroundings in accordance with Mole Valley Local Plan policy ENV22 and policy CS14 of the Mole Valley Core Strategy.

Condition 4

Before any above ground works commence, details of the hard surfacing to be used within the site shall be submitted to and approved in writing by the Local Planning Authority. The details shall indicate either porous materials or the provision of a direct run-off from the hard surface to a permeable or porous area. All hard surfacing shall be carried out in accordance with the approved details, completed prior to the first occupation of the development hereby permitted and thereafter, permanently retained as such.

Reason: To preserve the visual amenity of the area and prevent the increased risk of flooding, in accordance with Mole Valley Local Plan policy ENV25 and policies CS14 and CS20 of the Mole Valley Core Strategy.

Condition 5

Prior to the commencement of the development hereby permitted, surface water drainage details shall be submitted for the approval in writing by the Local Planning

Authority. Such details shall include an assessment of the potential for the disposal of surface water by means of a sustainable drainage system in accordance with the principles set out in the National Planning Policy Framework.

The assessment shall provide information of the design storm period and intensity (typically a 1 in 100 year storm of 30 minutes duration with an allowance for climate change), the method employed to delay and control the surface water discharged from the site and the means to prevent pollution of the receiving groundwater and/or surface water. Where applicable, the details shall include infiltration tests, calculations and controlled discharge rates. If the development is to discharge water into the ground in any form, then a full BRE Digest 365 infiltration test (or falling head test for deep bore soakaways) will have to be submitted to the Local Planning Authority prior to commencement of any works on site. The suitability of infiltration methods should be verified (i.e. possible contaminated ground).

The approved drainage scheme shall be implemented prior to the first occupation of the development

Reason: The Local Planning Authority is satisfied that it is fundamental to the development permitted to address this issue before development commences and that without this safeguard planning permission should not be granted and, in the interests of sustainable development, in accordance with the advice contained in the National Planning Policy Framework and policy CS20 of the Mole Valley Core Strategy.

Condition 9

Prior to any above ground works commencing, details to reduce the carbon emissions of the predicted energy use of the development hereby permitted by at least 10% through the on-site installation and implementation of decentralised and renewable or low-carbon energy sources shall be submitted and approved by the Local Planning Authority and be implemented prior to the first occupation of the development.

Reason: To optimise renewable energy and its conservation, in accordance with policy CS19 of the Mole Valley Core Strategy.

Condition 10

No occupation of the development hereby permitted shall take place until there has been submitted to and approved in writing by the Local Planning Authority a plan indicating the positions, design, materials and type of boundary treatment to be erected/retained. The boundary treatment shall be completed prior to the first occupation of the development, shall be carried out in accordance with the approved details and thereafter permanently retained as such.

Reason: To preserve the visual amenity of the area and protect neighbouring residential amenities in accordance with Mole Valley Local Plan policy ENV22 and policy CS14 of the Mole Valley Core Strategy.

Condition 11

The development hereby approved shall not be occupied unless and until each of the proposed dwelling(s) are provided with a fast charge socket (current minimum

requirements - 7 kw Mode 3 with Type 2 connector - 230v AC 32 Amp single phase dedicated supply) in accordance with a scheme to be submitted and approved in writing by the Local Planning Authority and thereafter retained and maintained to the satisfaction of the Local Planning Authority. The charging provision shall thereafter be permanently retained as such.

Reason: To accord with the sustainability objectives of the NPPF.